

CHAPTER 28.

An Act to enable the competent courts in the United Kingdom to entertain matrimonial proceedings in respect of certain marriages contracted during the war by members of His Majesty's Forces domiciled outside the United Kingdom. [22nd July 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Power to
entertain
proceedings.

1. Where a marriage has been contracted in the United Kingdom during the present war by a member of His Majesty's Forces domiciled in any of His Majesty's possessions or protectorates to which this Act applies, the competent court in that part of the United Kingdom where the marriage took place shall, any question of domicile or residence notwithstanding, have full jurisdiction and power to entertain, hear and determine any of the matrimonial proceedings specified in the Schedule to this Act, where such proceedings are instituted by either party to the marriage, and to make decrees and orders in relation to such proceedings, as though the parties to the marriage were domiciled or (where the jurisdiction of the court depends upon residence) resident in that part of the United Kingdom :

Provided that this Act shall not apply in any case where the parties to the marriage have at any time since the marriage resided together in the country of the husband's domicile.

For the purposes of this section, "the competent court" means, as respects England and Ireland the High Court, and as respects Scotland the Court of Session.

Application
of Act.

2. This Act applies—

- (a) to any self-governing dominion, as from such date as may be prescribed by the legislature of that dominion in any declaration or enactment which may be passed applying this Act to such dominion ;
- (b) to any of His Majesty's possessions, not being a self-governing dominion, and to any territory under His Majesty's protection, as from such date as may be prescribed by Order in Council applying this Act to that possession or territory.

The expression "self-governing dominion" means the Dominion of Canada, the Commonwealth of Australia, the Dominion of New Zealand, the Union of South Africa, and Newfoundland.

Short title,
construction,
saving, and
duration.
33 & 34 Vict.
c. 110.

3.—(1) This Act shall, in its application to England, be construed as one with the Matrimonial Causes Acts, 1857 to 1907, and those Acts and this Act may be cited together as the Matrimonial Causes Acts, 1857 to 1919, and this Act shall, in its

application to Ireland, be construed as one with the Matrimonial Causes and Marriage Laws (Ireland) Amendment Acts, 1870 and 1871, and those Acts and this Act may be cited together as the Matrimonial Causes and Marriage Laws (Ireland) Amendment Acts, 1870 to 1919; and this Act may be cited separately as the Matrimonial Causes (Dominions Troops) Act, 1919. 34 & 35 Vict.
c. 49.

(2) Nothing in this Act shall prejudice or affect the jurisdiction of any court with respect to matrimonial proceedings, other than that conferred by this Act.

(3) This Act shall not apply to proceedings commenced after the expiration of one year from the passing thereof.

SCHEDULE.

Section 1.

MATRIMONIAL CAUSES.

In England, proceedings for divorce, judicial separation, and restitution of conjugal rights.

In Scotland, proceedings for divorce, separation a mensâ et thoro, and adherence.

In Ireland, proceedings for divorce a mensâ et thoro, restitution of conjugal rights, and criminal conversation.

CHAPTER 29.

An Act to amend the Weights and Measures Acts, 1878 to 1904, in relation to instruments for measuring leather by superficial area. [22nd July 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) The powers and duties of the Board of Trade under section six of the Weights and Measures Act, 1904, in relation to certificates of suitability for use of certain appliances, shall extend to instruments for measuring the superficial area of leather and patterns thereof, and that section shall have effect accordingly. Instruments
for measuring
leather by
superficial
area.
+ Edw. 7. c. 28.

(2) The powers of the Board under section five of the aforementioned Act to make regulations with respect to measuring instruments shall include power—

- (a) to make the like regulations with respect to any instruments of a pattern certified by the Board of Trade in pursuance of the powers conferred by this Act; and